

24NWCV01399 24NWCV01399

County: los-angeles

Division: Civil Law and Motion

Department: P

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Morgan Little v. Lakewood Regional Medical Center, Inc.,

24NWCV01399

Ex parte

This civil rights action was filed on May 2, 2024. Trial is scheduled to begin on June 7, 2027. Defendant Lakewood Regional Medical Center, Inc.'s (Defendant) Motion for Summary Judgment (MSJ) is scheduled to be heard on July 21, 2026. Plaintiff now applies ex parte for the following relief:

1. Strike the Declaration of Oswynn Vincent Quilao, R.N.;
2. Strike all reply argument, factual disputes, and evidentiary citations relying on the Quilao declaration;
3. Strike Lakewood's 278-page Reply Separate Statement, or in the alternative strike all portions of that filing that contain new evidentiary matter, additional material facts, new evidentiary citations, embedded objections, cross-referenced disputes, or argument not presented in the moving papers or opposing papers;
4. Seal or strike the portions of Lakewood's reply papers that disclose, summarize, paraphrase, quote, or rely on Plaintiff's Protected Testimony, including Lakewood's responses to Plaintiff's Additional Facts Nos. 37, 38, 39, 95, 96, and 97, on pages 222-224 and 261-263 of the Reply Separate Statement;
5. Order Lakewood to immediately serve Plaintiff with complete copies of all deposition excerpts submitted to the Court under seal, including Plaintiff's Volume I deposition pages 45-46, 54, 56-58, 60, 62-63, and 65;
6. Strike from the MSJ/MSA record, or order the Court not to consider, any sealed deposition excerpts Lakewood submitted to the Court but did not serve on Plaintiff, including any reply argument, factual dispute, or evidentiary citation relying on those excerpts; and
7. Strike Lakewood's embedded evidentiary objections and cross-referenced factual disputes because they are procedurally improper, violate the summary-judgment reply rules, and deprive Plaintiff of a fair opportunity to respond.

As to Nos. 1-3, Plaintiff argues that the Quilao declaration is improper because it is new evidence presented on reply to an MSJ. As to No. 4, Plaintiff argues that Defendant improperly cited, and therefore disclosed, evidence that is subject to a protective order. As to Nos. 5 and 6, Plaintiff argues that Defendant failed to serve Plaintiff with documents that it filed with the Court. No. 7 is not clear.

Here, Nos. 1-3 and No. 7 are not supported by exigency. These are issues that may be addressed in the regular litigation and rulings on MSJs. Plaintiff is not precluded from filing a supplemental declaration as to arguments related to new evidence on reply.

As to No. 4, the Court cannot seal the record absent a Motion to Seal. "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, rule 2.551(b)(1).) The Court notes that Plaintiff does not cite to any authorities justifying the relief sought as to No. 4. The Court finds an order striking portions of the reply relying on the protected material reasonable while allowing Defendant to re-file a redacted version.

As to No. 5 and 6, the Court agrees that failure to serve material to Plaintiff may constitute a due process violation. Therefore, the Court agrees that deposition excerpts that were included in Defendant's filing that were not served to Plaintiff are not properly before the Court and will not be considered on summary judgment.

In sum, Plaintiff's ex parte application is GRANTED IN PART and DENIED IN PART.

Plaintiff's ex parte is DENIED as to Nos. 1-3 and 7. The Court does not consider these requests on an ex parte basis.

Plaintiff's ex parte is GRANTED IN PART as to No. 4. The Court finds an order striking portions of the reply which rely on the protected material reasonable. The Court permits Defendant to re-file a redacted version.

Plaintiff's ex parte application is GRANTED as to Nos. 5-6. The Court will not consider excerpts that were filed but not served to Plaintiff.

Moving party to give notice.